

1.

CASE #	CASE NAME	HEARING NAME
CVRI2406744	CRISTESCU vs WELLS FARGO BANK, N.A.	MOTION TO COMPEL DEPOSITION OF PLAINTIFF AND FOR TERMINATING SANCTIONS OR, IN THE ALTERNATIVE, ISSUE EVIDENTIARY SANCTIONS AGAINST PLAINTIFF, IN ADDITION TO MONETARY SANCTIONS

Tentative Ruling:

Grant the motion to compel Plaintiff's deposition. Order Plaintiff to appear for and participate in her videotaped deposition within 30 days of this order. Award Wells Fargo monetary sanctions in the reduced but reasonable amount of \$780 (\$360/hour x 2 hours + \$60 filing fee.) Deny the request for terminating, evidentiary, or issues sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601892	YAMMOUT vs SHULTZ	DEMURRER ON COMPLAINT

Tentative Ruling:

Plaintiff Bassam Tawfik Yammout alleges that on 3/15/24, Defendant David Zakaraiah Shultz, in a vehicle owned by him and Defendant Jennel Shultz, caused a car accident. On 3/24/26, Plaintiff filed the complaint for motor vehicle and general negligence.

Defendants demur to the complaint on the grounds that the complaint fails to state facts sufficient. They argue that the 2 year statute of limitations (Code Civ. Proc. § 335.1) bars the claim.

Plaintiff points out that Plaintiff has filed motion to deem complaint filed, requesting that the court deem the action filed earlier when Plaintiff originally attempted to file the complaint. Therefore, it argues that the statute of limitations does not on its face appear to be barred by the statute of limitations. Alternatively, it requests leave to amend.

Separately, Plaintiff moves to nunc pro tunc the complaint to the original submission date of 3/6/26, which the court rejected due to a venue issue. Plaintiff promptly investigated the venue issue and corrected the filing.

Analysis

A. Nunc Pro Tunc

Plaintiff discusses the “doctrine of constructive filing” but provides no applicable authority. He cites to *Elkins v. Derby* (1974) 12 Cal.3d 410, 417 which is a tolling doctrine when a plaintiff pursues administrative remedies, and *Rappaley v. Campbell* (1994) 8 Cal.4th 975, where a court clerk erred in entering the defendants default. Other than the general discussion of hearing a case on the merits, these cases have no application here.

Code of Civil Procedure section 473(d) permits the court, upon motion, to correct clerical mistakes in its judgments or orders. A clerical error is an inadvertent error in entering or recording the judgment rather than in rendering the judgment, i.e. judicial error. (*Bell v. Farmers Ins. Exch.* (2006) 135 Cal.App.4th 1138, 1144.) While section 473(d) speaks in terms of judgments and orders, California courts have consistently applied nunc pro tunc principles to deem complaints filed when clerks improperly reject them. (*Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 778; *Carlson v. State of California Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 1282-1283.) The remedy is not limited to post-judgment corrections.

The clerk’s functions are ministerial and the clerk has no discretion to reject a complaint that substantially complies; the remedy is to issue a nunc pro tunc that deems the complaint filed when it was presented. (*Rojas*, supra, 67 Cal.App.4th at 777-778.) In *Rojas*, the court of appeal reversed a summary judgment where the clerk rejected a complaint because a declaration for court assignment lacked a signature and the summons contained the address of the wrong court division. (*Id.* at 775.) The court held: “It is difficult enough to practice law without having the clerk’s office as an adversary. Where, as here, the defect, if any, is insubstantial, the clerk should file the complaint and notify the attorney or party that the perceived defect should be corrected at the earliest opportunity.” (*Id.* at p. 777.)

Similarly, in *Carlson v. State of California Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 1271-1272, the plaintiff’s counsel had failed to include a “certificate of assignment” required under local rule and the court clerk rejected it; by the time counsel was able to return to court, the statute of limitations had passed. “Government Code section 69846.5 provides that ‘[t]he clerk of the superior court shall endorse on each paper filed with the court the day, month, and year it is filed.’ For purposes of the statute of limitations, ‘filing’ means delivery to the clerk during business hours.” (*Id.* at 1273.) “[S]tate law is clear that a paper is deemed filed when it is presented to the clerk for filing in a form that complies with [former] CRC 201. If a paper is thus presented, the clerk has a ministerial duty to file it.” As to local rules, they cannot conflict with state law. (*Id.* at 1279.) While there are some consequences for failure to comply with a local rule, it does not authorize a clerk to refuse to file a pleading that complies with the California Rules of Court. (*Id.* at 1279-1280.)

As explained by one court: “If a document is presented to the clerk’s office for filing in a form that complies with the rules of court, the clerk’s office has a ministerial

duty to file it. [Citation.] Even if the document contains defects, the clerk's office should file it and notify the party that the defect should be corrected.” (*Voit v. Superior Court* (2011) 201 Cal.App.4th 1285, 1287.)

The problem here is that Plaintiff's complaint was not rejected by this court—it was rejected by San Bernardino County Superior Court for venue for an accident that occurred in Corona. There is no authority for San Bernardino's clerk's office to reject a complaint for what it deems an incorrect venue. Accordingly, the court grants the unopposed motion.

B. Meet & Confer

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via **phone, videoconferencing, or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Defendant complied. (Haycraft Decl. ¶4.)

C. Demurrer

Plaintiff requests judicial notice of the complaint filed in San Bernadino, the current complaint in this action, and the clerk's notice of rejection. The court grants judicial notice of the complaint but not the other documents, as Plaintiff failed to provide copies of those documents. (Cal. R. Ct., rule 3.1306(c).)

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

A demurrer based on a statute of limitations defense must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) “It is not sufficient that the complaint might be barred.” (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.) Here, all the claims are based on negligence. Accordingly, they are governed by a two year statute of limitations. (Code Civ. Proc. § 335.1.)

Contrary to Plaintiff's assertion, the complaint on its face is barred. The accident occurred on 3/15/24, Plaintiff did not file the lawsuit until 3/24/26. However, in light of granting the motion nunc pro tunc, the complaint is deemed filed as of 3/6/26—within the 2 years. The court overrules the demurrer. Defendant is to file a responsive pleading within 30 days.